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Case Name: *ABEDAYO ABIOYE v. ABRRAHAM CHAPA; VORTEX INDUSTRIES, LLC,*

Case No.: *25CV474504*

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

ADEAYO ABIOYE,

Plaintiff,

v.

**ABRRAHAM CHAPA; VORTEX INDUSTRIES,
LLC,**

Defendants.

**Case No. 25CV474504
[TENTATIVE] ORDER AFTER
HEARING**

Date: September 16, 2026

Time: 9:00 a.m.

Dept: 16

Line: 5

The following motion came on regularly for hearing on September 16, at 9:00 a.m. in Department 16, Honorable Matthew S. Harris presiding. The matter having been submitted; it is ordered:

Defendant Abraham Chapa's Motion to Compel Responses to Form Interrogatories, Set One, came on for hearing on September 16, 2026, in Department 16 of the above-entitled Court.

The Court has considered the moving papers, any opposition and reply, the arguments of counsel, and the records and files in this action.

The Court finds as follows:

1. Form Interrogatories

Defendant served Form Interrogatories, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve responses to the Form Interrogatories. Defendant thereafter attempted to meet and confer regarding the outstanding discovery, including correspondence dated November 13 and November 19, 2025. Plaintiff did not serve responses following those efforts.

Because Plaintiff failed to timely serve responses, Plaintiff has waived objections to the Form Interrogatories pursuant to Code of Civil Procedure section 2030.290.

Accordingly, Defendant's Motion to Compel Responses to Form Interrogatories, Set One, is **GRANTED.**

Plaintiff shall serve **verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 30 days after service of notice of entry of this Order.**

2. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Form Interrogatories necessitated Defendant's motion. Pursuant to Code of Civil Procedure section 2030.290, monetary sanctions are therefore warranted.

Defendant requests \$4,185 in attorney fees and costs. The Court finds, however, that the requested amount includes time that appears duplicative of time claimed in connection with Defendant's separate Motion to Deem Requests for Admission, Set One, Admitted, which is being heard on the same date.

The Court therefore awards only reasonable, nonduplicative expenses attributable to this motion.

The Court finds reasonable the following time:

- **4.0 hours** for preparation of the motion;
- **2.0 hours** for preparation of a response to any opposition; and
- **1.0 hour** for attendance at the hearing.

The Court declines to award the additional two hours claimed for preparation for and attendance at the hearing because that time appears duplicative of the hearing time claimed and awarded in connection with the separate motion concerning Requests for Admission.

At the requested hourly rate of \$375, the allowable attorney fees are:

7.0 hours × \$375/hour = \$2,625.00

The Court further allows the claimed filing fee of **\$60.00**.

Accordingly, the Court awards Defendant Abraham Chapa **\$2,685.00 in monetary sanctions** against Plaintiff Adedayo Abioye.

Plaintiff shall pay the sanctions in the amount of \$2,685.00 to Defendant's counsel within **30 days after service of notice of entry of this Order.**

3. Basis of Order

The Court's order compelling responses is based upon Plaintiff's failure to timely respond to the Form Interrogatories and the requirements of Code of Civil Procedure section 2030.290.

The Court's award of sanctions is limited to reasonable expenses attributable to this motion and excludes attorney time that appears duplicative of time claimed in connection with Defendant's concurrently heard motion concerning Requests for Admission.

IT IS SO ORDERED.

Dated: _____

JUDGE OF THE SUPERIOR COURT

Matthew S. Harris
Judge of the Superior Court

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Case Name:

Case No.:

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Case Name:

Case No.:

Calendar Line 8

Case Name: *A.T., a minor, by and through his Guardian ad Litem, Anthony Tam v. Tessellations and Does One through One Hundred*

Case No.: 26CV487271

This is a motion for a preferential trial setting under Code of Civil Procedure section 36, subdivision (b), where plaintiff is under 14 years old and has a substantial interest in the case. (Code Civ. Proc., § 36, subd. (b).) Plaintiff and his Guardian ad Litem are the moving party. The motion is unopposed. Because plaintiff meets the statutory criteria, a preferential setting is mandatory.

The motion is GRANTED. The court sets this matter for trial setting on **9/30/2026 at 11:00 a.m.** There will be a mandatory settlement conference on **9/23/2026 at 1:34 p.m.**, and there will be a trial assignment conference on **9/24/2026 at 1:31 p.m. in Department 18** of the court.